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Assembly district 45 - In or out, Zine may play role in vote - Ex-councilman says he's dropped from race, but his name is still on the ballot. 'He's a factor,' rival says

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Calvin Coolidge said, "I do not choose to run." Lyndon Johnson said, "I shall not seek, and I will not accept, the nomination of my party for another term as your president."

Dennis Zine's declaration that he is not a candidate for office is less straightforward.

This is causing confusion and no small amount of concern among contenders for Tuesday'sspecial election for the California Assembly in the west San Fernando Valley.

Although the former Los Angeles city councilman announced in February that he was dropping out of the 45th District Assembly race, his famous name remains on the ballot, and it's conceivable he'll receive enough votes to qualify for a runoff or help to determine who does.

On Tuesday, Zine told a reporter he is not raising funds, not campaigning, not advertising and not participating in debates. But he said that if

he were to win, he would go to Sacramento and serve the remaining months of the term of Matt Dababneh, who resigned from the Assembly in December after being accused of sexual misconduct.

"I'm not going to slap the voters in the face. If they call me to serve, I'll serve. It's like when I was eligible for the draft," Zine said. "I'd be honored to serve. I look at the state and the trouble with taxation and homelessness. I'm the only candidate without a party affiliation , so I'd work with both parties."

If nobody gets an outright majority on Tuesday and Zine qualifies for the runoff June 5, would he campaign for that election? If he won the special election, would he file to run for the next full two-year term as a write-in candidate on Nov. 6 against the two who advance from the top-two primary, also to be held June 5?

"I will face that when I come to it," Zine said.

So he's not saying: Don't vote for me. But he's also not saying: Vote for me.

The ambiguity adds to the mystery, conjecture about Zine's true motive, and the expectation that the man nicknamed Z Man will be the X factor in the election.

The 45th District election — one of three Assembly special elections on Tuesday — drew eight candidates: Democrats Jesse Gabriel, Tricia Robbins Kasson, Ankur Patel, Ray Bishop, Jeff Bornstein and Daniel Brin, Republican Justin Clark and Zine.

In a district where Democrats outnumbered Republicans 49 percent to 22 percent in January voter registration figures, Clark could benefit from being the only Republican and qualify for the runoff. This, despite the fact that Clark is, as his campaign website says, "an 18-year-old college student currently attending California State University Northridge while also working at a local ice cream shop."

It's also possible that conservative voters will skip over young Clark and choose old Zine, who has been a registered Republican and independent, and was the most boisterous nonliberal voice on the City Council.

“He’s a factor, for sure,” said Robbins Kasson, an aide to L.A. City Councilman Bob Blumenfield, Zine’s successor on the council.

Zine, 70, surprised many when he announced Jan. 29 that he would run for the Assembly five years after his last bid for office, a losing race for L.A. city controller following 12 years on the council. He surprised even more when he announced Feb. 12 that he had quit the race to accept what campaign consultant Rick Taylor called another “great opportunity.”

Zine has yet to identify that other great opportunity. (He said Tuesday he has promised that scoop to the publisher of the Warner Center News, a community weekly for which Zine writes a column.)

When Zine announced his withdrawal, rivals speculated that he wasn’t really giving up on the race, but was hoping to coast on his name recognition while avoiding negative publicity stemming from an old sexual-harassment accusation. In 1999, when he was a director of the L.A. police union, Zine was accused by a female LAPD officer of making inappropriate advances during a business trip. An LAPD disciplinary board absolved Zine but criticized him for “unbelievably poor judgment.”

Denying that his lack of a campaign is itself a campaign tactic, Zine said: “When I withdrew, I withdrew. I thought they’d take me off the ballot. I didn’t know the rules. The secretary of state said the only way we take you off is if you die.”

This was a length to which Zine was unwilling to go.

Gabriel, the race’s leading fundraiser, said he believes Zine. All the same, Gabriel’s campaign sent out a mailer reminding voters that Zine dropped out. And California Charter Schools Association Advocates, which has made independent expenditures in support of Gabriel, has spent more than $36,000 this month on advertising opposing Zine.

A recent mailer to some voters from the charter-schools group proclaimed: “Important News for Dennis Zine Supporters: Dennis Zine Has Withdrawn From the Race for Assembly.”

Zine received one of those mailers at his West Valley home, and said he thought: “Obviously there was a poll done that shows somebody’s concerned about Dennis P. Zine.”

Gabriel campaign consultant Mac Zilber said he did commission a poll but wouldn’t say what it revealed.

Zine said he plans to return the campaign contributions he has received after paying off small expenses from the two weeks his campaign was afloat.

On Tuesday, while most candidates await election returns with campaign advisers and supporters, Zine said he won’t be “sitting there looking at the numbers.” As for what he will be doing, he said, “I haven’t looked at my calendar.”

“It is unusual,” Zine said of the whole scene.

That, everyone could agree, is clear.

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